
Mutual Non-Disclosure Agreement

4ORM FINANCE • CONFIDENTIAL

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of the date of last signature (the "Effective Date") by and between:

(1) 4orm Finance, together with KCS Capital Inc., of Unit 400, 718 8 Ave SW, Calgary, AB T2P 1H3. 4orm Finance operates the institutional settlement platform; KCS Capital Inc. is the independent technology and research firm developing the infrastructure (together, "4orm Finance / KCS"); and

(2) the Counterparty identified in the signature block below (the "Counterparty").

Each a "Party" and together the "Parties."

1 Purpose

The Parties wish to explore and evaluate a potential business relationship, collaboration, transaction, or advisory engagement concerning the 4orm Finance institutional tokenized-deposit and settlement platform ("Permitted Purpose"). In connection with this, the Parties may disclose confidential, strategic, technical, financial, or proprietary information to one another.

This Agreement ensures all information exchanged remains strictly confidential and used only for the Permitted Purpose.

2 Definition of Confidential Information

"Confidential Information" means any non-public information disclosed, whether orally, visually, electronically, or in writing, including but not limited to:

- Business plans, strategies, forecasts, and financial data;
- Tokenomics, code, smart-contract architecture, and exchange technology;
- Corporate structure, valuation models, market research, operational data;
- Client lists, vendor contacts, investors, advisors, and partner information;
- Intellectual property, trade secrets, inventions, processes, and know-how;
- Regulatory, legal, or compliance documents;
- Any notes, summaries, analyses, or derivatives created from the above.

Confidential Information includes information disclosed before or after the Effective Date.

3 Exclusions

Confidential Information does not include information that:

- Is publicly available through no breach of this Agreement;
- Was already known to the receiving Party before disclosure;
- Is rightfully obtained from a third party without confidentiality obligations;
- Is independently developed by the receiving Party without reference to the Confidential Information;
- Must be disclosed by law, regulation, subpoena, or regulatory authority.

The receiving Party must provide prompt notice when legally permissible.

4 Obligations of the Parties

Each Party shall:

- Maintain all Confidential Information in strict confidence using at least a commercially reasonable degree of care;
- Not disclose any Confidential Information to any third party except employees, executives, board members, legal counsel, advisors, auditors, contractors, or service providers who need to know for the Permitted Purpose and are bound by confidentiality;
- Use the Confidential Information only for evaluating or pursuing the Permitted Purpose;
- Not reverse engineer, decompile, or disassemble any technology provided;
- Immediately notify the disclosing Party of any unauthorized disclosure or breach;
- Return or destroy all Confidential Information upon request.

5 No Obligations or Rights Created

This Agreement:

- Does not obligate any Party to enter into any transaction or business relationship;
- Does not grant any license or rights to intellectual property;
- Does not constitute any partnership, joint venture, or agency relationship;
- Simply enables safe discussion, evaluation, and exploration.

6 Term and Survival

The Agreement becomes effective on the date of last signature ("Effective Date"). Confidentiality obligations last three (3) years from the Effective Date. Trade secrets remain confidential indefinitely, as permitted by law.

7 Remedies

The Parties acknowledge that unauthorized disclosure of Confidential Information may cause irreparable harm. The disclosing Party is entitled to seek injunctive relief, equitable remedies, damages, and any other relief available under law, without needing to prove monetary damages.

8 No Waiver

Failure by any Party to enforce a right does not waive that right in the future.

9 Governing Law

This Agreement shall be governed by the laws of the Province of Alberta, Canada.

10 Signatures

This Agreement may be executed electronically or in counterparts, each considered an original, together forming a single binding agreement.

PARTY A - 40RM FINANCE (WITH KCS CAPITAL INC.)

SIGNATURE

Chad Johnston

NAME

Chad R. Johnston

TITLE

Founder & Chief Executive Officer

DATE

06/26/2026

PARTY B - COUNTERPARTY

SIGNATURE

Dean McCall

NAME

Dean McCall

TITLE / CAPACITY

Advisor

ADDRESS

36 Bing Cres Stoney Creek Ontario

L8E3Z4

DATE

06/27/2026